

**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited
(Reg: 1988/000570/06)

Applicant

and

Wilbur William Matthee

Respondent

**APPLICANT'S PRACTICE NOTE FOR DIRECTIVES IN TERMS OF
PRACTICE DIRECTIVE 20(4) – OPPOSED MOTION IN THIRD DIVISION**

1 Hearing Date

The return date of the rule nisi has been enrolled for 28 May 2026 on the motion court roll in terms of the attached Order marked **PN1** (the **Order**).

2 Legal Representatives

2.1 For the applicant:

Adv Graham Leslie SC – 083 395 2037; gleslie@capebar.co.za

Instructed by Deneys:

Jason Whyte – 083 236 3059; jason.whyte@deneys.co.za

2.2 The respondent is self-represented.

Mr Wilbur William Matthee – 069 635 1435; info@ethichawks.co.za /
wilburmat@gmail.com

3 Nature of the Matter

- 3.1 The matter is set down for the return date of a *rule nisi* granted by the Order of the above Honourable Court on 16 April 2026. The applicant wishes to have the rule nisi confirmed by way of a final order in accordance with the draft attached hereto marked “X”.
- 3.2 The applicant has sought, and continues to seek, an interdict against the respondent from carrying out the unlawful threats contained in his emails of 14 and 15 April 2026.
- 3.3 The respondent has opposed the application and filed an answering affidavit on 16 April 2026 (the **answering affidavit**) and the supplementary answering affidavit, incorporating a counter-application for declaratory relief, filed (prematurely) on 20 April 2026 (the **supplementary answering affidavit**).
- 3.4 On 4 May 2026, the applicant filed a supplementary affidavit in accordance with the Order in which the applicant also opposes the relief sought in the counter-application. The respondent has not filed any further affidavits.
- 3.5 The respondent’s answering affidavit to the applicant’s supplementary affidavit is due on 25 May 2026.

4 **Issues for Determination**

- 4.1 Whether the *rule nisi* should be confirmed as a final interdict restraining the respondent from the conduct described in paragraphs 2.1 to 2.5 of the Order;

- 4.2 Whether the respondent's threatened conduct constitutes extortion or a legitimate settlement demand;
- 4.3 Whether the applicant is entitled to interdict the disclosures on the basis that the information contained therein is either confidential, proprietary or would involve the disclosure ('processing') of third party-personal information in contravention of the *Protection of Personal Information Act, 2013*.
- 4.4 Whether the respondent's threatened disclosures qualify as protected disclosures under the *Protected Disclosures Act, 2000*;
- 4.5 Whether the respondent's counter-application for declaratory relief is competent in these proceedings;
- 4.6 Whether the respondent is entitled to discovery;
- 4.7 Whether the respondent's supplementary answering affidavit is irregular; and
- 4.8 Costs.

5 Request and reasons for early allocation

- 5.1 The court file has been indexed and paginated.
- 5.2 The combined papers in this matter (founding affidavit and annexures, answering affidavit, supplementary answering affidavit with 22 annexures, notice to anticipate return day bundle of 160 pages, supplementary founding affidavit and annexures, and heads of argument) exceed 500

pages. In the circumstances the parties respectfully request an early allocation in terms of Practice Note 43(3)(a).

- 5.3 The issues are such that the judge allocated to hear the matter would reasonably need to receive the papers earlier than the day before the hearing in order to prepare.

6 Estimated duration

- 6.1 The hearing is expected to take half a day (approximately 3 hours).

7 Relevant portions of the papers

- 7.1 The Honourable Judge is respectfully requested to read the following:

7.1.1 The applicant's founding affidavit and annexures (pp 001-7 to 001-41);

7.1.2 The applicant's supplementary founding affidavit (pp 011-1 to 011-87);

7.1.3 The respondent's answering affidavit (pp 009-1 to 009-15);

7.1.4 The respondent's supplementary answering affidavit (pp 0012-1 to 009-127);

7.1.5 The applicant's heads of argument (section 054) (to be filed);

7.1.6 The respondent's heads of argument (section 054) (if filed).

- 7.2 It is not necessary for the Honourable Judge to read the respondent's 160-page anticipation bundle (pp 048-1 to 048-14), as that aspect of the matter

has been heard and disposed of by Order of the Honourable Acting Justice Manca on 24 April 2026.

8 **Settlement**

8.1 The matter is not capable of settlement.

8.2 The applicant seeks a final interdict restraining the respondent from carrying out threats of unlawful conduct.

Signed at **Cape Town** on this the **19th** day of **May 2026**



Deneys

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Frances.Barker@deneys.co.za

Ref: J Whyte / AFR1282

TO:

The Registrar of the High Court
Cape Town

AND TO:

Wilbur William Matthee

Respondent

Email: info@ethichawks.co.za

wilburmat@gmail.com

IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN

Honourable Acting Justice Mphego

Given on this 16th day of April 2026

2006-086906
Case No: 160/2026

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

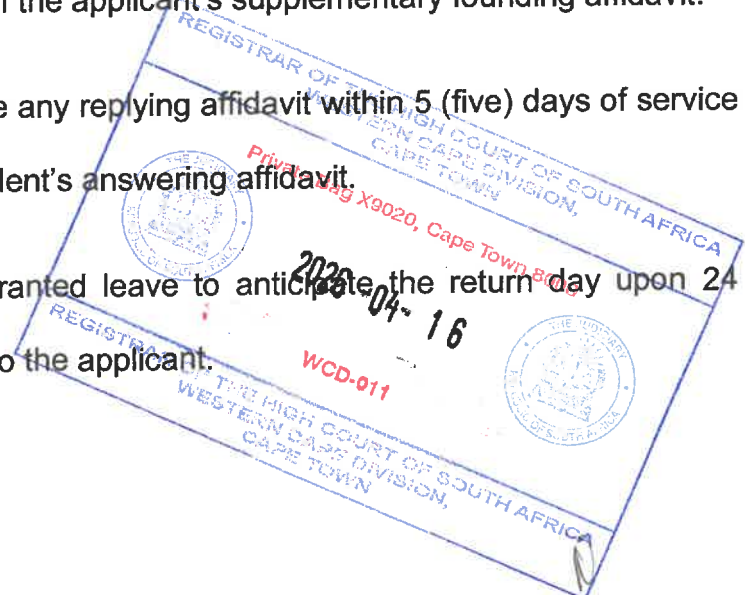
- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 A *rule nisi* is issued calling upon the respondent to show cause on **28 May 2026** why a final order should not be made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

- 2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.
- 2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.
- 2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not

limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

- 2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.
- 2.6 The respondent is to pay the costs of this application.
- 3 The orders per paragraphs 2.1 to 2.6 shall operate as interim orders with immediate effect pending the return date of the *rule nisi*.
- 4 The applicant is granted leave to supplement its founding affidavit within 10 (ten) days of the date of this order.
- 5 The respondent is to file any answering affidavit within 15 (fifteen) days of service upon him of the applicant's supplementary founding affidavit.
- 6 The applicant is to file any replying affidavit within 5 (five) days of service upon it of the respondent's answering affidavit.
- 7 The respondent is granted leave to anticipate the return day upon 24 hours' written notice to the applicant.



- 8 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

(Ref: AFR1282 / J Whyte)

Tel: 021 405 1208

Email: Jason.Whyte@deneys.co.za



**IN THE HIGH COURT OF SOUTH AFRICA
WESTERN CAPE DIVISION, CAPE TOWN**

Honourable Judge _____
Given on this 28th day of May 2026

Case No: **2026-086906**

In the matter between:

AfroCentric Investment Corporation Limited

Applicant

and

Wilbur William Matthee

Respondent

DRAFT ORDER

After having heard counsel for the applicant and having considered the matter, it is ordered that:

- 1 The provisions of the rules relating to time periods, forms and manner of service referred to therein are dispensed with and any non-compliance with such provisions is condoned, and the matter is dealt with as one of urgency in terms of Rule 6(12).
- 2 The rule nisi issued on 16 April 2026 is confirmed and a final order is made in the following terms:
 - 2.1 The respondent is interdicted and restrained from disclosing, disseminating, publishing, or communicating to any third party, including but not limited to the Public Servants Association of South Africa (PSA), the National Education Health and Allied Workers Union (NEHAWU), the Democratic Nursing Organisation of South Africa (DENOSA), the Police

and Prisons Civil Rights Union (POPCRU), the Federation of Unions of South Africa (FEDUSA), or any other trade union, any confidential, proprietary, or commercially sensitive information belonging to the applicant or any of its subsidiaries, including any document referred to as the "Mahlangu Root Cause Analysis" or "Mahlangu RCA", or any information relating to the applicant's internal systems, clinical processes, financial affairs, or integration architecture.

- 2.2 The respondent is interdicted and restrained from making, publishing, or causing to be published any defamatory, false, or malicious statements concerning the applicant, its directors, officers, employees, auditors, or any regulatory bodies, including but not limited to any statement referred to as a "Whistleblower's Manifesto" or any public statement alleging fraud, market deception, misconduct, or impropriety on the part of the applicant or any person associated with it.
- 2.3 The respondent is interdicted and restrained from filing, or causing to be filed, any complaint, report, or submission with the Johannesburg Stock Exchange (JSE), the Companies and Intellectual Property Commission (CIPC), the Independent Regulatory Board for Auditors (IRBA), or any other regulatory body, which is based on false, misleading or unsubstantiated allegations against the applicant.
- 2.4 The respondent is interdicted and restrained from demanding, soliciting, or attempting to obtain any payment, settlement, or other benefit from the applicant by means of threats, coercion, or intimidation, including but not

limited to any demand made conditional upon the non-disclosure of information or the cessation of legal proceedings.

2.5 The respondent is 2.22.4interdicted and restrained from contacting, communicating with, or convening any meeting with any trade union, labour federation, or employee representative body for the purpose of inciting, encouraging, or coordinating any action against the applicant, including but not limited to any application for a High Court interdict, the freezing of premium payments, or any collective action relating to the applicant's affairs.

2.6 The respondent is to pay the costs of this application, including the costs of counsel, on Scale C – such costs to include the wasted costs occasioned by the proceedings of 24 April 2026.

3 The orders per paragraphs 2.1 to 2.6 shall operate with immediate and final effect.

4 Service of this order is to be effected on the respondent by email to info@ethichawks.co.za and wilburmat@gmail.com.

BY ORDER OF THE COURT

COURT REGISTRAR

Deneys

Per: Jason J Whyte

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(Ref: AFR1282 / J Whyte)
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